

ICT Law, Policy and Ethics

Md. Saleh Akram

Assistant Professor
Department of L&HR, UAP

Prepared by:

Shahriar Arefin

22101040 | Section: A

Semester: Spring 25



Contents

1	Cyber Security Ordinance 2025	1
---	-------------------------------	---

Chapter 1

Cyber Security Ordinance 2025

(h) "Critical Information Infrastructure (CII)" means any external or virtual information infrastructure declared by the Government which controls, processes, transmits, or stores any information or any digital or electronic information and which, if damaged or compromised, may have a detrimental effect on- (i) Public safety, economic security, or public health, and (ii) National security or state integrity or sovereignty,

(i) "Global threat Intelligence" means a process or method through which the cyber security of critical information infrastructure, economy, health and other Collects, analyzes and reports global threat and risk information and logs in critical hardware and software sectors with the aim of reporting accurate and relevant information, proposing cyber defense and strategy solutions that help individuals, artificial intelligence agents, organizations and states take preventive measures against such threats;

(q) "Digital Child Sexual Abuse Material" means any material or representation created by any means, using any digital or electronic medium, which (i) visually, audibly, or textually, or otherwise, depicts or describes real or simulated sexually explicit acts, or any sexual organ, or sexual exploitation or abuse, or sexual services, or sexual contact with another person, including a child, or a sexual offence as defined in applicable law, committed in relation to or in the presence of a child as defined in sections 2(17) and 4 of the Children Act, 2013 (Act No. 24 of 2013); or (ii) visually, audibly, or textually induces, arouses, encourages, or directs, by text or otherwise, a child to engage in or observe any real or simulated sexual activity, or to expose any sexual organ, or to engage in or assist in sexual exploitation or abuse, or to engage in or assist in sexual services, or to engage in or assist in sexual contact with another person, including a child, or to engage in or assist in other sexual offenses as defined by applicable law (including giving or receiving payment for sexual services), or to control a child for sexual exploitation, or to entice a child for sexual purposes; or (iii) visually, audibly, or textually induces, arouses, encourages, threatens, or directs, by visual, audible, textual, or other means, a child to engage in or observe any real or simulated sexual activity, or to expose any sexual organ, or to engage in or assist in sexual services, or to engage in or assist in sexual services, or to engage in or assist in sexual contact with another person, including a child; or Engaging in or observing 4 sexual contact with, or engaging in or assisting in other sexual offenses as defined by applicable law, including paying or receiving payment for sexual services, controlling a child for sexual exploitation, or luring a child for sexual purposes: Subject to the condition that, whether such material is intended to cause or induce sexual arousal or gratification shall be deemed irrelevant: Provided further that any such material which is expressly made and/or used for lawful purposes only in the interest of law enforcement or criminal investigation, medical care, or authorized research, education, or media reporting shall not be covered by this definition;

(v) "Unlawful access" means access to any computer or digital device or digital network or digital information system without the permission of any person or authority or in violation of the terms of such permission, or by such access to prevent the exchange of any information or data in such information system or to suspend or disrupt or stop the processing thereof, or to alter or augment or add or subtract from such information or to collect any information or data through any digital device; Removing data from cache, deleting or removing software logs, traces, records, as the case may be, transferring, blocking, which shall also be referred to as intrusion or hacking;

(z) "Sexual harassment" means (i) Harassing someone in cyberspace by repeatedly requesting nude images, or misusing administrative or professional authority to propose illicit physical relations in cyberspace; or (ii) Sending unsolicited images of a person's genitalia, sexually explicit content, or pornographic materials in cyberspace; or transforming someone's image into

pornographic or sexualized content using technological means without their consent; or (iii) Issuing threats in cyberspace for rejecting a proposal of a relationship, or attempting to establish sexual relations through inducement or intimidation.

(ab) "Cyber security" refers to the protection of physical infrastructures in cyberspace— including digital devices, computers, tablets, smartphones, digital wearables, computer systems, computer data, signaling data, traffic data, data centers, and cloud services—as well as the protection of personal, institutional, financial, and business information. It also includes safeguarding government and non-government software, APIs, coding, software algorithms, and artificial intelligence tools, as well as ensuring proper and authorized access to portals or networks only by authorized individuals. This definition further encompasses access by both individuals and artificial intelligence agents or tools, and includes the right of citizens to uninterrupted internet access;

(ag) "Sextortion" means a type of fraud or extortion by which an attempt is made to obtain money, privileges, or establish physical relations by demanding or threatening to disclose intimate or personal pictures or videos of a person. (2) All words or expressions not defined in this Ordinance shall have the meaning as used in the Information and Communication Technology Act, 2006 (Act No. 39 of 2006).